

praesidium reges ipsi sibi perfugiumque,
et pecudes et agros divisere atque dedere
pro facie cuiusque et viribus ingenioque.

And more and more every day those who excelled in intellect and were strong in mind showed the others how to exchange their former way of life for new practices and, in particular, for the use of fire. Kings began to build cities and to choose sites for citadels to be strongholds and places of refuge for themselves; and they distributed gifts of flocks and fields to individuals according to their beauty, strength, and intellect.⁷⁷

A problem in regard to this passage is whether “those who excelled in intellect and were strong in mind” of line 1107 are identical to the first kings of line 1109. This seems to be very likely, since a change in subject between the lines would be quite odd.⁷⁸ Understood in this way, then, the passage implies that the preeminent men/first kings use their superior capabilities to serve their own interest, not that of the public (see the pronouns *ipsi* . . . *sibi*). The preeminent men thus try to use their preeminence to circumvent the terms of the original contract. They try to create special privileges for themselves: They order cities and citadels to be built so they can have a safe residence. And this place of refuge is then used as a power basis in order to amass other privileges.

The attempt of the first kings to usurp power does not succeed. According to Lucretius, the initial kingships fail because the interests of all are not sufficiently taken into account.⁷⁹ In the process of accruing power, the kings use their wealth to persuade and deceive the many. As Lucretius writes, “no matter how much physical strength and beauty people possess, they follow in the train of the rich [*divitioris enim sectam plerumque sequuntur | quamlibet et fortes et pulchro corpore creti*].”⁸⁰ However, such a deception of the many is not successful for long. Strife

⁷⁷ Lucretius, *On the Nature of Things* V.1105–10. Trans. Smith, modified.

⁷⁸ See also Hermarchus, fr. 34 Longo Auricchio (= Porphyry, *On Abstinence* I.10 [quoted below]).

⁷⁹ A parallel passage in Epicurus is *KD* 7: “Some wanted to become reputed and admired, thinking that they acquire security from other human beings in this way. And so, if the life of those [human beings] is secure, then they have received Nature’s good. However, if it is not secure, they do not possess that which they desired from the beginning according to what is naturally appropriate [“Ἐνδοξοὶ καὶ περίβλεπτοί τινες ἐβουλήθησαν γενέσθαι, τὴν ἐξ ἀνθρώπων ἀσφάλειαν οὕτω νομίζοντες περιποιήσεσθαι ὥστε, εἰ μὲν ἀσφαλὴς ὁ τῶν τοιοῦτων βίος, ἀπέλαβον τὸ τῆς φύσεως ἀγαθόν· εἰ δὲ μὴ ἀσφαλὴς, οὐκ ἔχουσιν οὐ ἕνεκα ἐξ ἀρχῆς κατὰ τὸ τῆς φύσεως οἰκεῖον ὠρέχθησαν.”] Trans. mine. See also *KD* 6: “In order not to fear <other> human beings, there is the natural good of rule and kingship, with which one is possibly able to procure this <fearlessness> [“Ἐνεκα τοῦ θαρρεῖν ἐξ ἀνθρώπων ἦν κατὰ φύσιν ἀρχῆς καὶ βασιλείας ἀγαθόν, ἐξ ὧν ἂν ποτε τοῦτο οἶός τ’ ἦ παρασκευάζεσθαι.”] Trans. mine.

⁸⁰ Lucretius, *On the Nature of Things* V.1115–16. Trans. Smith.

and power struggles very soon result. These lead to the dethronement of the first kings.⁸¹ This experience makes people aware of the necessity of introducing the rule of law:

inde magistratum partim docuere creare
iuraque constituere, ut vellent legibus uti.
nam genus humanum, defessum vi colere aevum,
ex inimiciis languebat; quo magis ipsum
sponte sua cecidit sub leges artaque iura.
acrius ex ira quod enim se quisque parabat
ulcisci quam nunc concessumst legibus aequis,
hanc ob rem est homines pertaesum vi colere aevum.

At length some of them taught the others to create magistracies and established ordinances, so that [the others] might want to use laws.⁸² The human race, utterly weary as it was of leading a life of violence and worn out with feuds, was the more ready to submit voluntarily to the restraint of laws and stringent ordinances. The reason why people were sick and tired of a life of violence was that each individual was prompted by anger to exact revenge more cruelly than is now allowed by just laws.⁸³

The passage above mentions both “laws” (*leges*) and “ordinances” (*iura*). According to standard Latin legal vocabulary, “*ius*” is a broader term, encompassing all kinds of moral norms, written and unwritten, while “*lex*” is narrower and refers to written law. However, both terms can also be used as synonyms. If Lucretius used the terms as distinct in meaning, he would claim that the new sanction mechanisms helped codify both written laws as well as the (unwritten) moral norms in human communities, which would make the latter more pervasive. This would be difficult to make sense of. In the case of norms, societal reprimanding can be effective to enforce them. In this vein, it might be effective to reprimand agents in regard to certain behavior, for instance, to shout at them to enforce a social norm. But it seems surprising that such a way of reprimanding agents was not available in the previous stage of societal development. After all, the problem of the previous phase is that there are no sanction mechanisms in place to create pervasive adherence to norms and that such pervasiveness can only come

⁸¹ *Ibid.*, V.1136–42.

⁸² The Latin text is not clear whether the preeminent men teach others to establish ordinances (as on Bailey’s translation) or whether the preeminent men establish the ordinances themselves (as on Smith’s translation quoted here). However, the parallel passage in Hermarchus, fr. 34 Longo Auricchio (= Porphyry, *On Abstinence* 1.7–12) notes that not everyone will become a law-giver, which makes the latter reading of the Lucretius passage more likely than the former.

⁸³ Lucretius, *On the Nature of Things* V.1143–50. Trans. Smith, modified.

about by the punishments that are set down in conjunction with the law. It seems more likely, then, that Lucretius is using “*lex*” and “*ius*” as a hendiadys to express the same idea: codified law. This would also fit better with the Greek heritage of Epicurean thought. Epicurus, writing in Greek, had no way of distinguishing “*lex*” and “*ius*.” In Greek, the word “*nomos*” covers the meaning of both moral convention and law, both written and unwritten.

The passage thus makes it clear that for Lucretius, the rule of law (“codified law”) emerges as the result of a process that heavily involves trial and error and the recognition of what is best *faute de mieux*. Furthermore, as has been argued, Lucretius at this point draws on what seems like a theory of political change, according to which one form of government devolves into the next.⁸⁴ The original kingship deteriorates into a tyranny, the tyranny degrades into an oligarchy, and ultimately a form of government emerges that in virtue of its magistrate (*magistratus*) has some resemblance with the republican political order of Lucretius’ day. Such a description is notably different from one that would capture the political realities of Athens in Epicurus’ time, which lost at least some autonomy by becoming part of the empire of Alexander the Great. Therefore, Lucretius’ account at this point is very unlikely a direct adoption of Epicurus’ ideas, if indeed Epicurus himself dealt with this topic. (Unfortunately, no discussion is extant.) However, this is not to say that the idea of a change in forms of political order that is described in Lucretius is entirely novel, either. As is well known, other thinkers such as Plato, Aristotle, and – most systematically – the second-century BCE historian Polybius discuss the idea that certain forms of political order will decline into other forms, and it would be a desideratum of future scholarship to find out to what extent Lucretius may – either directly or indirectly – have found inspiration in these writers.

In this context, we should also note that it is even unclear which form of political order is truly the best on the Epicurean view and so which one Epicurus himself would have endorsed. While Abderite accounts of how political communities come to be, like those of Democritus and Protagoras, are often taken to be defenses of democratic ideology,⁸⁵ it is

⁸⁴ Schrijvers 1996 distinguishes six distinct phases in Lucretius. However, this distinction does not seem quite so clear, even if it is certain that Lucretius gives an account of how different forms of political order develop into others.

⁸⁵ Farrar 1988 discusses both authors as proponents of democratic thinking. For Democritus as a defender of democracy, see, for instance, Paneris 1977, 88–9 (including an overview of the literature up to 1977); Spinelli 1991; Mejer 2004; and Rechenauer 2019. The claim that Protagoras is in favor of democracy is defended in Moore 1988; Beresford 2013; and Manuwald 2014; among

not clear that this is also true of the Epicureans. There is, for instance, some evidence that the Epicureans endorsed monarchical kingships at least on some occasions, namely, on the condition that these kingships further Epicurean ends,⁸⁶ even if generally Epicureans were advised to avoid contact with kings.⁸⁷ The basic idea here is very simple: if a king is able to free Epicurean agents to live the good life without having to worry about political matters, then such an arrangement seems very favorable. In the same vein, Philodemus wrote a treatise *On the Good King According to Homer*, which in part is a work of literary criticism. More importantly, however, the work can be seen as an outline of the characteristics of a good ruler, with the intention of providing a model that real-life rulers can follow, a kind of mirror of princes like Xenophon's *Education of Cyrus*.⁸⁸ Moreover, Philodemus' work was dedicated to the Roman senator Piso, who was Philodemus' patron.⁸⁹ And, in the same vein, Plutarch also claims that the Epicurean Colotes (fourth to third century BCE) dedicated the treatise, in which he systematically refuted the doctrines of other philosophers, to Ptolemy II Philadelphus.⁹⁰ This again seems to indicate that the Epicureans at least in some instances had direct relationships with rulers and were favorable toward kingships. Nevertheless, as we will see in more detail in the course of this book, the Epicurean attitude toward the political is often dependent on particular circumstances. It therefore seems most prudent not to single out a given form of political organization as the preferred one, but rather to ascribe to the Epicureans a conditional attitude in regard to the question of which form of political order is best as well.

Having discussed the form of political order that is to be established, let us next turn to *how* the rule of law is established in Lucretius' account. For the Roman author, even those who have intellect are prone to errors and thus to "forgetfulness" when it comes to what is best for society as a whole. As a result, different preeminent men are needed, who give the laws after the first kingships fail. These men are more mindful of what is beneficial to all than the first kings were, and so we see clearly at this point – more clearly than when the agreements of justice emerged – that Epicurean legal agreements are not purely conventional but importantly need to take into consideration what is beneficial for everyone.

others. However, this claim is more controversial than the one about Democritus. For instance, see the critical discussion in Hoffmann 1997, 41 and 63–4.

⁸⁶ For a more detailed discussion, see McConnell 2010 as well as Fish 2011.

⁸⁷ Plutarch, *Against Colotes* 1127a.

⁸⁸ On Philodemus' work, see Asmis 1991 and Fish 2018.

⁸⁹ Philodemus, *On the Good King According to Homer*, col. XLIII.16–20.

⁹⁰ Plutarch, *Against Colotes* 1107e.